

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Muhammad Shafi Siddiqui
Mr. Justice Miangul Hassan Aurangzeb

Civil Petition No. 1062 of 2025

*[Against judgment dated 23.01.2025 of
the Federal Service Tribunal, Islamabad
passed in Appeal No.143(R)CS/2021]*

AND

CMA No.922 of 2025

[Stay Application]

*National Language Promotion Department, through its
Executive Director, Islamabad.*

... *Petitioner*

Versus

Syed Sardar Ahmad Pirzada and others.

... *Respondents*

For the Petitioner:

Barrister Umer Aslam Khan,
Additional Attorney-General for Pakistan.
a/w Mr. Nisar Muhammad, Programmer.

For Respondent No.1:

Mr. M. Shoaib Shaheen, ASC.

Date of Hearing:

19.05.2026.

JUDGMENT

Muhammad Shafi Siddiqui, J. This civil petition for leave to appeal, filed under Article 212(3) of the Constitution of the Islamic Republic of Pakistan, 1973, is directed against the judgment dated 23.01.2025 passed by the Federal Service Tribunal, Islamabad in Appeal No.143(R)CS/2021, whereby the appeal of respondent No.1 was allowed and the petitioner department was directed to consider his case for grant of ante-dated time scale promotion to BS-19 in the light of the existing policy.

2. Respondent No.1, while serving in the National Language Promotion Department as Research Aide/Deputy Director in BS-18, approached the Federal Service Tribunal by filing a service appeal, aggrieved by the non-consideration of his representation seeking a grant of time scale promotion to BS-19. It was his case that, having rendered long service in the

department, he had become eligible for such promotion in terms of the policy introduced by the Federal Government. Therefore, his case was liable to be considered accordingly.

3. It was further contended before the Tribunal that the respondent had joined the then National Language Authority on 30.06.1988 in BS-17 and continued to serve the organisation after its conversion into the National Language Promotion Department. It was stated that during the course of his service, he remained in BS-17 for a considerable period and was subsequently granted a move-over in BS-18, which was later withdrawn, whereafter he was ultimately promoted to BS-18 with effect from 01.06.2016. The respondent asserted that having completed the requisite length of service in BS-17 and thereafter in BS-18, he had become eligible for the grant of time scale promotion to BS-19 in terms of the policy contained in Notification dated 24.02.2014 issued by the Federal Government, and that such entitlement accrued to him with effect from 01.12.2016, but his case was not considered by the department despite submission of representation dated 20.11.2020.

4. The petitioner department contested the claim by filing para-wise comments before the Tribunal, wherein it was, inter alia, stated that the respondent had no vested right to promotion and that the grant of promotion, including time scale promotion, was subject to the fulfilment of prescribed conditions, availability of vacancy, and recommendation by the competent forum. It was further asserted that the policy relied upon by the respondent was not applicable to the National Language Promotion Department and that the matter relating to framing and finalisation of Recruitment Rules was under process before the competent authority; therefore, in the absence of such rules, no claim for promotion could be asserted as of right. The department also raised certain preliminary objections with regard to the

maintainability of the appeal and limitation, which, according to it, had not been properly addressed.

5. The Tribunal, after hearing the parties and examining the material placed on record, allowed the appeal of the respondent and held that the absence of Recruitment Rules could not be taken as an impediment in the matter of grant of time scale promotion. It was observed that the policy contained in Notification dated 24.02.2014 provided a framework for the grant of such promotion on the basis of length of service and that the respondent had, prima facie, fulfilled the requisite criteria. The Tribunal took the view that an employee, upon completion of the prescribed length of service, could not be deprived of consideration for time scale promotion merely on account of non-finalisation of rules by the department. It further observed that the question of fitness and suitability of the respondent would still fall within the domain of the Departmental Promotion Committee and, therefore, no prejudice would be caused to the department if the case of the respondent was directed to be considered in accordance with the policy. On this premise, the Tribunal directed the petitioner department to place the case of the respondent before the competent forum for consideration of ante-dated time scale promotion to BS-19 with effect from the date of his eligibility and to complete the process within a stipulated period.

6. We have heard the learned counsel for the parties and have perused the material available on record. The controversy in the present case lies in a narrow compass and relates to whether, in the absence of applicable Recruitment Rules and in the face of a disputed policy framework, the Tribunal could have directed the petitioner department to consider the case of the respondent for the grant of an ante-dated time scale promotion. The determination of this question necessarily involves examination of the nature of such promotion, the legal effect of policy instructions in the absence of

governing rules, and the extent of jurisdiction exercisable by the Tribunal in such matters.

7. In Khushdil Khan Malik v. Secretary, Establishment Division Cabinet Block, Islamabad and others (2021 SCMR 1496), this Court has considered the nature and scope of time scale promotion and held that the Civil Servants Act, 1973 does not define the term “Time Scale Promotion”, therefore it cannot be considered as a term and condition of service. It was further held that promotion on the basis of time scale is not a regular promotion but a matter of policy granted to specific categories of professions by the competent authority with the concurrence of the Finance Division, and that such policy is meant to grant benefits of higher pay scales to those cadres of civil servants which do not ordinarily get promotions to higher grades under the applicable rules. The Court further observed that the monetary benefits under the time scale formula cannot be extended generally to all civil servants, but only to such a class of civil servants as are mentioned in the approved policy.

8. This position has further been reiterated in Secretary Finance, Finance Division, Pak. Secretariat, Islamabad v. Muhammad Farooq Khan and others (2022 SCMR 381), wherein this Court, while examining the effect of grant of time scale promotion, held that such grant does not amount to promotion in terms of the Civil Servants (Appointment, Promotion and Transfer) Rules, 1973, and that the Tribunal fell in error in treating the same as a promotion in service. It was observed that the grant of time scale is simply a grant of higher scale without any change in designation of the post and does not involve up-gradation of the post or amendment in the recruitment rules, and therefore any relief premised on treating such benefit as a regular promotion was not sustainable.

9. In the present case, the record reveals that the claim of the respondent for grant of time scale promotion was founded solely upon the policy relied upon by him, whereas the consistent stance of the petitioner department was that the said policy was not applicable to it and that the Recruitment Rules governing the service structure were yet to be finalised. This position has not been shown to have been conclusively determined by the Tribunal. Notwithstanding this, the Tribunal proceeded to assume applicability of the policy and directed consideration of the case of the respondent for grant of ante-dated time scale promotion. Such direction, in our view, could not have been issued in the absence of a clear legal foundation establishing that the respondent was entitled, in law, to invoke the said policy. Even otherwise, as noted above, time scale promotion, being a policy-based benefit confined to specified categories, no direction for its grant or even consideration could be issued unless the respondent demonstrated that he fell within the ambit of such policy. The mere fact that the respondent had rendered long service or had completed a particular length of service did not, by itself, confer a right to seek consideration dehors the applicable legal framework. The Tribunal, while observing that the matter would be subject to the recommendation of the Departmental Promotion Committee, failed to appreciate that such consideration presupposes the existence of a valid claim under the governing rules or policy, which was itself in dispute in the present case. Under these circumstances, the direction issued by the Tribunal, even to the extent of consideration, cannot be sustained in law.

10. Under the circumstances, we are of the considered view that the findings and conclusions recorded by the Tribunal are not sustainable in law, as the direction issued for consideration of the respondent for grant of ante-dated time scale promotion was premised on an assumed applicability of policy which had not been established. The impugned judgment, therefore,

cannot be sustained. Consequently, this petition is converted into an appeal and the same is allowed. The judgment dated 23.01.2025, passed by the Federal Service Tribunal, Islamabad, in Appeal No. 143(R)CS/2021, is set aside. CMA No.922 of 2025 is disposed of.

Judge

Judge

Islamabad:
19.05.2026

Approved for Reporting
[Simra Sohail, LC]